

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
TYGEE A. MILLER,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER "MALIK"  
and POLICE OFFICER "JOHN DOE",

Defendants.  
-----X

Filed: \_\_\_\_\_

INDEX NO.

Plaintiff designates Bronx  
County as the place of trial.

**S U M M O N S**

The basis of venue is the  
County in which the cause  
of action arose.

**To the above named Defendants:**

**YOU ARE HEREBY SUMMONED** to answer the complaint in this action and to serve a copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons, exclusive of the day of service of this summons, or within 30 days after service of this summons is complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York  
January 27, 2020

  
**LEAV & STEINBERG, L.L.P.**  
*Attorneys for Plaintiff*  
140 Broadway, Suite 3601  
New York, New York 10005  
(212) 766-5222

**SEE ATTACHED RIDER**

THE CITY OF NEW YORK  
c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE  
100 Church Street  
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, NY 10038

POLICE OFFICER "MALIK"  
1 Police Plaza  
New York, NY 10038

POLICE OFFICER "JOHN DOE "  
c/o NEW YORK CITY CORPORATION COUNSEL'S OFFICE  
1 Police Plaza  
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
TYGEE A. MILLER,

INDEX NO.

Plaintiff,

**VERIFIED COMPLAINT**

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER "MALIK"  
and POLICE OFFICER "JOHN DOE",

Defendants.  
-----X

Plaintiff, by his attorneys, LEAV & STEINBERG, L.L.P., as and for his Verified  
Complaint, respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION**

1. The plaintiff TYGEE A. MILLER at all times herein mentioned was and still is a  
resident of the County of Bronx, City and the State of New York.

2. At all times herein mentioned, defendant THE CITY OF NEW YORK  
(hereinafter referred to as defendant "CITY"), was and still is a municipal corporation duly  
authorized to and doing business in the County, City and State of New York.

3. That at all times hereinafter mentioned, NEW YORK CITY POLICE  
DEPARTMENT (hereinafter referred to as "NYPD"), was and still is a public authority and/or  
agency of the defendant CITY duly authorized to and doing business in the County, City and  
State of New York.

4. That at all times hereinafter mentioned, the NYPD was a subsidiary, agency  
and/or otherwise under the auspices and control of the defendant CITY.

5. At all times herein mentioned, the NYPD was and remains a department of

defendant CITY.

6. That at all times hereinafter mentioned, defendant CITY was and is responsible for the actions of the NYPD, its agents, servants and/or employees

7. Prior to the commencement of this action, a notice of claim in writing was served on the defendant CITY on behalf of plaintiff in accordance with Section 50-e of the General Municipal Law.

8. Prior to the commencement of this action, a notice of claim in writing was served on the NYPD on behalf of plaintiff in accordance with Section 50-e of the General Municipal Law.

9. That plaintiff duly presented and served upon defendant CITY their notice of claim and demand for adjustment of damages by serving and filing same upon said defendant within ninety (90) days after the accrual of plaintiff's claims pursuant to the statutes in such cases made and provided.

10. That plaintiff duly presented and served upon the NYPD their notice of claim and demand for adjustment of damages by serving and filing same upon said defendant within ninety (90) days after the accrual of plaintiff's claims pursuant to the statutes in such cases made and provided.

11. That although more than thirty (30) days have elapsed since the presentation and service of the notice of claim and demand for adjustment of damages, defendant CITY has failed to make any adjustments and/or payments of said claim.

12. That although more than thirty (30) days have elapsed since the presentation and service of the notice of claim and demand for adjustment of damages, the NYPD has failed to make any adjustments and/or payments of said claim.

13. The oral examination of the plaintiff pursuant to Section 50-h of the General Municipal Law was conducted on July 15, 2019.

14. That this action is commenced within one year and ninety days of the date of accrual of plaintiff's claims.

15. That this action is commenced within one year of the date of accrual of plaintiff's claims.

16. At all times herein mentioned, defendant CITY operated and maintained police forces charged with the duty and responsibility of maintaining the peace in the City of New York.

17. At all times herein mentioned, defendant CITY operated, managed and controlled NYPD.

18. At all times herein mentioned, defendant CITY operated, maintained, managed, supervised and controlled a police department as part of and in conjunction with its municipal functions.

19. At all times herein mentioned, defendant CITY employed police officers.

20. At all times herein mentioned, defendant CITY supervised the NYPD.

21. At all times herein mentioned, defendant CITY supervised the NYPD and its personnel.

22. At all times herein mentioned, defendant CITY supervised the NYPD and its personnel, including its police officers.

23. At all times herein mentioned, defendant CITY supervised the NYPD, and its personnel, including defendant POLICE OFFICER "MALIK".

24. At all times herein mentioned, defendant CITY supervised the NYPD, and its personnel, including defendant POLICE OFFICER "JOHN DOE".

25. At all times herein mentioned, the NYPD employed police officers.

26. At all times herein mentioned, the NYPD supervised its personnel.

27. At all times herein mentioned, the NYPD supervised its personnel, including its police officers.

28. At all times herein mentioned, the NYPD supervised its personnel, including defendant POLICE OFFICER "MALIK".

29. At all times herein mentioned, the NYPD supervised its personnel, including

defendant POLICE OFFICER "JOHN DOE".

30. At all times herein mentioned, defendant POLICE OFFICER "MALIK" was an employee of defendant CITY.

31. At all times herein mentioned, defendant POLICE OFFICER "MALIK" was an employee of the NYPD.

32. At all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was an employee of defendant CITY.

33. At all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was an employee of the NYPD.

34. At all times herein mentioned, defendant CITY employed and supervised the defendant POLICE OFFICER "MALIK".

35. At all times herein mentioned, defendant CITY employed and supervised the defendant POLICE OFFICER "JOHN DOE".

36. At all times herein mentioned, the NYPD employed and supervised the defendant POLICE OFFICER "MALIK".

37. At all times herein mentioned, the NYPD employed and supervised the defendant POLICE OFFICER "JOHN DOE".

38. At all times herein mentioned, defendant POLICE OFFICER "MALIK" was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD, and was acting in the course and scope of their employment.

39. At all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD, and was acting in the course and scope of their employment.

40. At all times herein mentioned, defendant POLICE OFFICER "MALIK" was the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD and acting in furtherance of the interests and business of his employer.

41. At all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was

the employee of defendant CITY, duly appointed and acting as a police officer for the NYPD and acting in furtherance of the interests and business of his employer.

42. At all times herein mentioned, defendant POLICE OFFICER "MALIK" was engaged in conduct incidental to the performance of his functions in the course of his duties as employee of the defendants.

43. At all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was engaged in conduct incidental to the performance of his functions in the course of his duties as employee of the defendants.

44. At all times herein mentioned, defendant POLICE OFFICER "MALIK" was engaged in supervisory capacities in the scope of his employment with defendants.

45. At all times herein mentioned, defendant POLICE OFFICER "JOHN DOE" was engaged in supervisory capacities in the scope of his employment with defendants.

46. The plaintiff was injured as a result of the negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees.

47. On December 9, 2018, plaintiff TYGEE A. MILLER was lawfully a pedestrian on 3rd Avenue, near 149th Street Subway Station for #2 & #5 Trains, in the County of Bronx, City and State of New York.

48. On December 9, 2018, the plaintiff TYGEE A. MILLER was a lawful citizen abiding by all laws, statutes and ordinances of the State of New York.

49. At the aforesaid time and place certain New York City police officers POLICE OFFICER "MALIK" and POLICE OFFICER "JOHN DOE" were present.

50. At the aforesaid time and place certain POLICE OFFICER "MALIK" and POLICE OFFICER "JOHN DOE" were present in the course and scope of their employment with defendant NYPD.

51. At the aforesaid time and place certain POLICE OFFICER "MALIK" and POLICE OFFICER "JOHN DOE" were present in the course and scope of their employment with defendant with the knowledge, authority, permission and consent of defendant NYPD.

52. At the aforesaid time and place plaintiff was assaulted, attacked, battered, dragged and illegally detained by aforesaid New York City Police Officers.

53. At the aforesaid time and place plaintiff was violently, forcibly and improperly handcuffed by aforesaid New York City Police Officers.

54. At the aforesaid time and place plaintiff was forcibly and improperly handcuffed by said York City Police Officers and transported to the "Holding Facility" at the 040th Precinct, where plaintiff was falsely, illegally and wrongfully detained.

55. That on December 9, 2018, plaintiff was wantonly, intentionally, maliciously, illegally, and aggressively assaulted, attacked, battered, struck and handcuffed by said New York City Police Officers who used excessive force and violence in their handling and dealing with the plaintiff.

56. At all times herein mentioned, defendants had the duty to ensure that their actions, activities and behavior conformed to a certain standard of conduct established by the law for the protection of civilians, including the plaintiff, against unreasonable risk of harm.

57. That the aforesaid occurrence were caused solely and wholly, through and by reason, of the carelessness, recklessness and negligence of the defendants in failing to instruct or properly instruct their personnel, particularly the police officers involved herein, in the manner in which they were to execute their duties; in failing to supervise, properly supervise and/or adequately supervise its personnel; in hiring employees with known wild and criminal propensities; in failing to employ and/or hire competent, able and/or knowledgeable officers; in failing to train and/or properly train their officers in the proper execution of their jobs; in failing to train, properly train and/or adequately train its police officers, agents, servants and/or employees, in the safe and proper execution of their jobs; in violating the applicable laws, statutes, codes, rules, regulations, ordinances, and industry standards in such cases made and provided; in the gross, wanton, reckless and willful acts of defendants, their agents, servants and/or employees; in causing plaintiff grave psychological and emotional injuries; they were otherwise careless, reckless and negligent and failed to exercise reasonable care and prudence, all without any fault or lack of



care on the part of plaintiff thereto.

58. That by reason of the foregoing plaintiff was seriously and permanently injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur, further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and plaintiff will be unable to pursue his usual duties with the same degree of efficiency as prior to this occurrence, all to his great damage.

59. The limitations on liability set forth in CPLR Section 1601 do not apply to this action by reason of one or more of the exemptions set forth in CPLR Section 1602.

60. Due to defendants' negligence, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION**

61. Plaintiff repeats, reiterates and realleges each and every allegation contained in the First Cause of Action of the within complaint with the same force and effect as though each were more fully set forth at length herein.

62. That on December 9, 2018, plaintiff was falsely, illegally and wrongfully arrested by aforesaid Police Officers without probable or just cause or provocation, and detained, transported to the Police Precinct and imprisoned the plaintiff for an unreasonable period of time thereafter until he was released.

63. That on December 9, 2018, plaintiff was caused to be falsely and wrongfully arrested, handcuffed, detained, imprisoned, incarcerated and deprived of his rights and liberty for an unreasonable period of time until he was discharged.

64. That on December 9, 2018, defendants, their agents, servants and/or employees did falsely, wrongfully, intentionally and maliciously arrest, detain, imprison and incarcerate the

plaintiff, depriving him of his civil rights and liberty for an unreasonable period of time, all without any just cause or provocation.

65. That by reason of the foregoing, plaintiff was caused to sustain severe and serious injuries and damages, both mentally and physically, severe nervous shock, emotional distress and illness, was placed in a position of fear for his life and well-being, was subjected to extreme embarrassment, humiliation, scorn and ridicule, defamation of character, and was severely injured and damaged.

66. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION**

67. Plaintiff repeats, reiterates and realleges each and every allegation contained in the First and Second Causes of Action of the within complaint with the same force and effect as though each were more fully set forth at length herein.

68. At all times herein mentioned it was the duty of defendants to select and screen for hiring for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

69. At all times herein mentioned, it was the duty of said defendants to properly train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of its agents, servants and/or personnel.

70. That by reason of the negligence of defendants in their hiring, monitoring and retention of said employees with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendants' breach of their duties, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional

injuries which are permanent in nature and duration.

71. That by reason of the foregoing, plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION**

72. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

73. The defendants issued criminal legal process against the plaintiff for the purpose of forbearing certain acts by the plaintiff.

74. The plaintiff was deprived of his liberty and freedom by way of arrest and confinement.

75. The actions of the defendants causing the plaintiff to be arrested, imprisoned, and prosecuted, were affected for the ulterior purpose of causing plaintiff to be unlawfully deprived of his liberty and civil rights, and to suffer inconvenience, humiliation, shame, embarrassment, damage to his reputation and good name, and to incur legal expenses.

76. The defendants acted with ulterior purpose of causing the plaintiff harm, all the while lacking any economic justification, social excuse, or other justification.

77. The defendants activated the process for a collateral advantage or corresponding detriment to the plaintiff that is outside the legitimate ends of the process.

78. The false arrest, false imprisonment, and wrongful prosecution of plaintiff by the defendants was intentional, without justification or excuse, a misuse of process, and an abuse of judicial process.

79. By reason of the foregoing, the plaintiff sustained actual and special damages, was improperly deprived of his liberty and civil rights, and was caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

80. The limitations set forth in section 1601 of the CPLR do not apply to this action

by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

**AS AND FOR A FIFTH CAUSE OF ACTION**

81. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

82. On December 9, 2018, the plaintiff was lawfully a pedestrian on 3rd Avenue, near 149th Street Subway Station for #2 & #5 Trains, in the County of Bronx, City and State of New York.

83. The plaintiff had not committed any offense and the defendants did not have justification, reasonable cause, or probable cause to believe that the plaintiff had committed any offense.

84. The defendants, acting in the performance of their employment and the scope of their authority maliciously prosecuted the plaintiff by commencing an action in the Criminal Court of the City of New York, County of New York, under case number CN001634-2014.

85. The aforementioned prosecution of the plaintiff was fully dismissed and terminated in favor of the plaintiff by certificate of disposition number 388316.

86. The aforementioned prosecution of the plaintiff was terminated in such a way that indicated the innocence and non-culpability of the plaintiff.

87. The defendants had no probable cause for the criminal proceeding initiated, continued, and executed against the plaintiff.

88. The defendants lacked a reasonable basis to believe the plaintiff was guilty of the crimes charged based on the facts known to the defendants at the time the prosecution was initiated and failed to conduct further inquiry when a reasonable person would have done so before the prosecution.

89. The defendants commenced the criminal proceeding against the plaintiff with malice.

90. The defendants acted deliberately with awareness of conscious falsity.

91. The defendants fabricated charges against the plaintiff and set those charges forth in false and fabricated criminal charges, falsely sworn by the defendants.

92. The defendants fabricated information against the plaintiff, such as that he possessed a knife, and included this information in their reports.

93. The criminal conduct and reports against the plaintiff were and are false and fraudulent.

94. Based upon the false criminal complaint and complaint reports prepared by the defendants, the criminal court relied on false charges.

95. The defendants' conduct was motivated by hatred, ill will, spite, and was wanton, reckless, and in willful disregard of the rights of the plaintiff.

96. By reason of the foregoing, the plaintiff sustained actual and special damages, was improperly deprived of his liberty and civil rights, and was caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

97. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

98. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

**AS AND FOR A SIXTH CAUSE OF ACTION**

99. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the foregoing paragraphs of the within complaint with the same force and effect as if fully set forth herein.

100. At all times herein mentioned, the defendants were acting under color of state law, to wit, under color of statutes, ordinances, regulations, policies, customs, and usages of The City of New York and The State of New York.

101. At all times herein mentioned, the defendants' acts constituted state action.

102. On and before December 9, 2018, the defendants developed and maintained

policies, customs, and practices exhibiting deliberate indifference to the constitutional rights of persons in the City of New York, which caused a violation of the plaintiff's rights.

103. On and before December 9, 2018, it was the policy, custom, and practice of the defendants to improperly and inadequately investigate citizen and other complaints of police misconduct and acts of misconduct were instead tolerated, including but not limited to, incidents in the past wherein the defendants and their supervisors made false arrests without probable cause and allowed fellow police officers and employees to make false entries in official police department records, to issue false and fraudulent criminal complaints and accusatory instruments, and to cover up and hide wrongful conduct.

104. On and before December 9, 2018, it was the policy, custom, and practice of the defendants to fail to take steps to discipline, train, supervise, or otherwise correct the improper and illegal conduct of the individual defendants in this and similar cases involving misconduct, thereby failing to adequately discharge further constitutional violations on the part of its police officers.

105. On and before December 9, 2018, it was the policy, custom, and practice of the defendants to fail to require appropriate in-service training and re-training of police officers who were known to have engaged in police misconduct.

106. If certain individual defendants did not themselves engage in tortious conduct directed at the plaintiff, those individuals failed to prevent physical battery, arrest, and abuse of the plaintiff, or other tortious conduct by the other individual defendants directed toward the plaintiff, despite having a duty to do so.

107. As a result of the faulty policies, customs, and practices of the defendants, the police officers employed by the defendants believed their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

108. The defendants' policies, customs, and practices demonstrated a deliberate indifference on the part of the policymakers to the constitutional rights of persons within the City

of New York, and were the cause of the violations of plaintiff's rights.

109. The plaintiff in no way provoked or encouraged the conduct of the defendants and the defendants' conduct was in no way privileged.

110. The defendants, acting in concert and individually, deprived the plaintiff of his civil, constitutional, and statutory rights, and conspired to deprive plaintiff of such rights under the 1<sup>st</sup>, 4<sup>th</sup>, 5<sup>th</sup>, 8<sup>th</sup>, and 14<sup>th</sup> amendments, and 42 U.S.C. §§ 1981, 1983, 1985, 1986, and 1988, including but not limited to: the right to be free from arbitrary and groundless arrest, the right to be free from cruel and unusual punishment and summary punishment, the right to be free from unlawful restraints on movement, right not to be subjected to imprisonment without due process of law, the right to enjoy equal protection of the laws, the right to have all legal rights enjoyed by Caucasian persons, the right to be secure in person and property, the right to have persons entrusted with legal authority to act to enforce his civil rights to act to enforce such rights or be themselves adjudicated, the right to be free from excessive and unreasonable force, the right to obtain timely medical treatment, the right to be protected as a prisoner, and the right to be free from conspiracies to violate his civil rights by those acting under color of state law.

111. By reason of the foregoing, the plaintiff was caused to be falsely arrested, illegally deprived of his liberty and civil rights, caused to suffer imprisonment and confinement, caused to be assaulted and battered, wrongfully prosecuted, incapacitated from his usual vocation, and caused to incur emotional upset, mental anguish, embarrassment, shame, humiliation, anguish, injury to reputation, lost earnings, and legal expenses.

112. By reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

113. The limitations set forth in section 1601 of the CPLR do not apply to this action by reason of one or more of the exceptions set forth in section 1602 of the CPLR.

**WHEREFORE**, plaintiff demands judgment in the First, Second, Third, Fourth, Fifth and Sixth Causes of Action against defendants herein in a sum which exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction, together with the costs and

disbursements of this action and such other and further relief as to this Court seems just and proper.

Dated: New York, New York  
January 27, 2020



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**By: Alexander Kran III**  
**LEAV & STEINBERG, LLP**  
*Attorneys for Plaintiff*  
75 Broad Street, Suite 1601  
New York, New York 10004  
(212) 766-5222



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
TYGEE A. MILLER,

Plaintiff,

-against-

INDEX NO.

**ATTORNEY'S  
VERIFICATION**

THE CITY OF NEW YORK, THE NEW YORK CITY  
POLICE DEPARTMENT, POLICE OFFICER "MALIK"  
and POLICE OFFICER "JOHN DOE",

Defendants.  
-----X

Alexander Kran III, an attorney duly admitted to practice law in the State of New York,  
makes the following affirmation under the penalty of perjury:

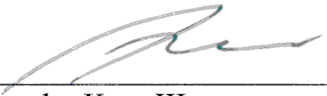
I am an associate of the firm of LEAV & STEINBERG, L.L.P., the attorneys of record for  
the plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my  
own knowledge except as to the matters therein stated to be alleged on information and belief and  
that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiff because she is not in the County  
of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge  
are correspondence had with the said plaintiff, information contained in the said plaintiff's file,  
which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York  
January 27, 2020

  
\_\_\_\_\_  
Alexander Kran III

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.

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TYGEE A. MILLER,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE  
OFFICER "MALIK" and POLICE OFFICER "JOHN DOE",

Defendants.

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**SUMMONS and VERIFIED COMPLAINT**  
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**LEAV & STEINBERG, LLP**  
*Attorneys for Plaintiff*  
75 Broad Street, Suite 1601  
New York, New York 10004  
(212) 766-5222